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Philosophy of Politics:
Classical and contemporary liberalism:
freedom, rights and democracy

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Classical and Contemporary Liberalism: Freedom, Rights and Democracy

- Classical and contemporary liberal traditions
- Competing concepts of freedom
- Individual rights and social justice
- Liberalism and democratic government
- Central question: *What does a free society require?*

Liberalism as an Evolving Tradition

- Liberalism is a family of related but competing doctrines
- Classical liberalism emphasizes limited government, property and markets
- Contemporary liberalism often gives greater importance to social and economic conditions of freedom
- Both claim individual freedom as a central political value

Three Fundamental Liberal Questions

- **Freedom:** What does it mean to be free?
- **Rights:** What claims may individuals make against others and the state?
- **Democracy:** How can collective political power respect individual freedom?
- Different liberal traditions provide different answers

The Classical Liberal Starting Point

- Individuals are presumptively free
- Political coercion requires justification
- Government exists for limited purposes
- Private property protects a sphere of individual independence
- Voluntary interaction is generally preferable to coercive direction

Locke's Liberal Inheritance

- Individuals are naturally free and equal
- Rights exist prior to political government
- Legitimate political authority rests on consent
- Government exists to protect rights
- Political power is limited by its purposes

From Natural Liberty to Political Liberty

- Natural freedom cannot simply continue unchanged in political society
- Law necessarily restricts some actions
- Liberalism therefore does not demand the absence of all restraint
- The problem is distinguishing legitimate from illegitimate restraints
- *Which restrictions make equal freedom possible?*

Freedom as Non-Interference

- A person is free insofar as others do not interfere with their choices
- Coercion reduces the sphere of individual action
- Government is itself a potential source of coercion
- Liberty therefore requires limits on political power
- This becomes especially important within classical liberalism

The Private Sphere

- Liberalism seeks to establish areas protected from collective control
 - Conscience and religion
 - Expression
 - Association
 - Personal life
 - Property and economic activity
- Liberals disagree about where the boundary of this sphere should lie

John Stuart Mill: Liberty Reconsidered

- Mill retains a strong presumption in favor of individual liberty
- But the threat to liberty comes from society as well as government
- Public opinion can enforce conformity
- Democratic majorities can exercise social power
- Liberty therefore requires protection from both political and social coercion

Mill's Harm Principle

- Individuals should generally be free to govern their own lives
- Coercion may be justified to prevent harm to others
- A person's own good is normally insufficient justification
- The principle rejects extensive paternalism
- *When does individual conduct become legitimately public?*

Freedom as Individuality

- Mill's freedom is not simply absence of interference
- Individuals need opportunities to develop their capacities
- Different ways of living should be permitted
- Individual experimentation can benefit society
- Freedom becomes connected to human development

Freedom of Expression

- Fallible human beings cannot assume their beliefs are infallible
- Suppressed opinions may contain truth
- Debate forces beliefs to confront criticism
- Intellectual freedom benefits both individuals and society
- Mill therefore connects liberty with the production of knowledge

The Classical Liberal State

- Protection against violence and coercion
- Enforcement of law and contracts
- Protection of individual rights
- Constitutional and legal restraints on government
- Beyond these functions, classical liberals disagree about legitimate state activity

Liberty and Property

- Classical liberals closely connect property with liberty
- Property creates a sphere of independent decision-making
- Markets permit decentralized voluntary exchange
- Economic freedom limits centralized political control
- Classical liberalism therefore treats property as politically significant, not merely economically useful

The Market as a Liberal Institution

- Individuals pursue different purposes
- Exchange does not require agreement about a common conception of the good
- Prices coordinate decentralized choices
- Economic decisions need not be centralized
- Markets can therefore be understood as institutions compatible with pluralism

The Classical Liberal Problem

- Formal freedom can coexist with substantial economic inequality
- Contractual freedom can coexist with unequal bargaining power
- Property can protect independence but also concentrate power
- Industrialization makes these tensions increasingly visible
- *Can poverty itself restrict freedom?*

The Rise of Social Liberalism

- Late nineteenth and twentieth-century liberals reconsider the role of government
- Freedom may require more than absence of legal interference
- Education can expand individual capacity
- Poverty can restrict meaningful choices
- Government can potentially enable as well as restrict freedom

Negative and Positive Freedom

- **Negative freedom:** absence of interference
- **Positive freedom:** capacity for self-direction or effective agency
- Classical liberalism tends to emphasize the former
- Social liberalism often gives greater weight to the latter
- The distinction is important but not absolute

Isaiah Berlin

- *Two Concepts of Liberty* (1958)
- Negative liberty concerns the sphere free from interference
- Positive liberty concerns control or authorship of one's life
- Both represent historically important conceptions of freedom
- Berlin warns about certain political uses of positive liberty

The Problem of Positive Freedom

- Individuals sometimes act against their own long-term purposes
- This can generate a distinction between the “actual” and “rational” self
- Political authorities may then claim to represent someone's “true” interests
- Coercion can consequently be presented as liberation
- Berlin treats this possibility as a serious political danger

Berlin and Value Pluralism

- Human values can genuinely conflict
- Liberty can conflict with equality
- Justice can conflict with mercy
- Security can conflict with liberty
- Politics therefore cannot always produce a perfectly harmonious solution

Rights

- Rights establish claims concerning what individuals may do or what others must or must not do
- Rights distribute freedom and authority
- They establish limits on permissible political action
- Modern liberalism makes rights central to political legitimacy
- But liberals disagree about which rights exist and why

Negative and Positive Rights

- **Negative rights:** require others to refrain from interference
 - Freedom of expression
 - Freedom of religion
 - Protection against arbitrary imprisonment
- **Positive rights:** require access to some good or service
 - Education, healthcare or social security may be defended in this way

The Disagreement About Social Rights

- Classical liberals worry that positive rights require coercive redistribution
- Social liberals argue that basic resources can make liberty effective
- One side emphasizes protection from state coercion
- The other emphasizes the social conditions necessary to exercise freedom
- Both arguments appeal to liberty

John Rawls and Contemporary Liberalism

- *A Theory of Justice* (1971)
- Rawls revives social-contract reasoning in contemporary political philosophy
- Citizens are conceived as free and equal
- Justice concerns the basic structure of society
- Social institutions must be justifiable to those who live under them

Rawls: The Original Position

- Imagine choosing principles for society without knowing your own social position
- You do not know your class, wealth, talents or conception of the good
- This is the “veil of ignorance”
- The device is intended to model fairness
- *What principles would people choose without knowing who they would become?*

Rawls: Equal Basic Liberties

- Each citizen possesses equal basic liberties
- Political liberty
- Freedom of thought and conscience
- Freedom of association
- Integrity of the person
- Basic liberties receive priority within Rawls's theory

Rawls and Social Inequality

- Rawls does not require complete economic equality
- Social and economic inequalities require justification
- Fair equality of opportunity is important
- His difference principle permits inequalities when arranged to benefit the least advantaged
- Contemporary liberalism therefore connects liberty with questions of distributive justice

Nozick's Liberal Challenge to Rawls

- Robert Nozick rejects patterned theories of distributive justice
- Justice concerns how holdings were acquired and transferred
- Voluntary exchange can produce unequal outcomes
- Redistributing those outcomes requires further interference

Does equality justify limiting voluntary transactions?

Two Contemporary Liberal Paths

- **Rawls:** liberty requires fair institutions and adequate conditions for exercising freedom
- **Nozick:** liberty requires strong constraints against interference with persons and holdings
- Both begin from the moral importance of individuals
- They disagree fundamentally about redistribution
- Contemporary liberalism contains the dispute rather than resolving it

Liberalism and Democracy

- Liberalism and democracy are conceptually distinct
- Democracy concerns the distribution of political authority
- Liberalism concerns the legitimate limits and purposes of authority
- Liberal democracy attempts to combine popular sovereignty with individual rights
- The combination produces persistent tensions

Why Democracy?

- Citizens subject to laws have an interest in political participation
- Political equality gives citizens comparable political standing
- Elections make rulers accountable
- Democratic institutions permit peaceful political competition
- Democracy provides mechanisms for revising collective decisions

Why Limit Democracy?

- Majorities can violate individual rights
- Electoral victory does not make every policy legitimate
- Minorities require constitutional protection
- Some liberties must remain protected from ordinary political competition
- Liberal democracy therefore rejects unlimited majority rule

Constitutionalism

- Constitutions establish rules governing political power
- Rights constrain what governments may legitimately do
- Separation of powers disperses authority
- Independent institutions can constrain temporary majorities
- Democracy operates within a framework of legal limitations

The Democratic Dilemma

- If judges overturn legislation, unelected institutions constrain elected majorities
- If majorities are unrestricted, individual and minority rights may become vulnerable
- Liberal democracy therefore contains two competing commitments:
 - popular sovereignty
 - constitutional limitation

Who should have the final word?

Contemporary Political Liberalism

- Modern societies contain persistent moral and religious disagreement
- Citizens hold different conceptions of the good life
- A common political order must nevertheless make binding laws
- Rawls asks how coercive institutions can remain legitimate under these conditions
- Liberal legitimacy therefore becomes a problem of public justification

Public Reason and Pluralism

- Citizens need not agree about religion or ultimate morality
- Political principles should not depend entirely on one comprehensive worldview
- Citizens are treated politically as free and equal
- Liberal institutions seek terms of cooperation that diverse citizens can reasonably accept
- Pluralism becomes a permanent condition rather than a temporary problem

Classical and Contemporary Liberalism

- Classical: liberty, property, markets, limited government
- Social/egalitarian: liberty, fair opportunity, social justice
- Libertarian: strong rights, voluntary exchange, minimal government
- Political liberalism: pluralism, legitimacy, public justification
- These are competing branches of a broader liberal tradition

Three Enduring Liberal Tensions

- **Freedom:** non-interference vs. effective capacity
- **Rights:** property and non-interference vs. social and economic claims
- **Democracy:** popular sovereignty vs. constitutional limits
- Liberalism does not eliminate these tensions
- Much contemporary liberal theory consists precisely in arguing about how to resolve them

The Liberal Landscape Today

- **Locke:** *What makes political authority legitimate?*
- **Mill:** *Where should individual liberty end?*
- **Berlin:** *What does freedom mean?*
- **Rawls:** *What institutions could free and equal citizens accept as fair?*
- **Nozick:** *What may the state legitimately take or redistribute?*
- **Liberal democracy:** *How can we govern ourselves collectively without surrendering individual freedom?*